FLEET TEAM DIGEST

737MAX-FTD-20-17002

Issue Title : Consumables Impacted by REACH Annex XIV

Airplane Model	ATA	Minor Model(s)
737MAX	2030-00	-7, -8, -8200, -9, -BBJ

Other Model(s)	ECCN
757, 737NG, 737, 767, 747, MD-11, 777, 787	9E991

Originated Date	Last Revised Date	Created On
04/06/2017	01/03/2023	12/22/2022

Estimated Completion Date	Next Update Date
08/22/2024	06/19/2023

Revision Description

Boeing has reviewed the attached consumables list and confirmed that there are no updates or changes as of the date of this article revision. The blue text that was within the attached list has been changed to black text to clearly indicate that there are no new changes.

Applicability

All Boeing airplanes.

Description

This Fleet Team Digest (FTD) article provides Boeing's assessment of maintenance consumable materials that may contain Substances of Very High Concern (SVHC) included in Annex XIV of REACH by the European Chemicals Agency (ECHA) and the UK Health and Safety Executive (HSE). This information was compiled by Boeing's Chemical and Material Risk Management process to identify maintenance consumables that may need authorization for continued use in the European Union (EU).

Background

REACH is the Regulation (EC) No 1907/2006 of the European Parliament and of the Council of 18 December 2006 concerning the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH). It came into effect on 1 June 2007.

REACH applies to substances manufactured, used, or imported into the EU. It covers substances on their own, in a preparation or in an article manufactured, imported, placed on the market or used.

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Authorization for continued use in the European Union relates to substances of very high concern (SVHC) as defined in the REACH regulation, Article 57 (a) to (f). Substances for potential inclusion in Annex XIV are selected from the candidate list published on the European Chemical Agency (ECHA) website. Annex XIV is the list of substances subject to authorization. Substances included in the list of Annex XIV of REACH cannot be placed on the market for use or used after the defined sunset date without prior authorization of the European Commission unless that use is exempt from authorization. EU entities must apply for authorization to place on the market for use or to use the Annex XIV listed substance. Maintenance consumables used in Boeing maintenance and repair documents have been identified as containing substances on the Annex XIV list.

BREXIT

Under the European Union (Withdrawal) Act 2018, the EU REACH Regulation was brought into UK law on 1 January 2021 and is known as UK REACH.

REACH, and related legislation, were replicated in the UK with the changes needed to make it operable in a domestic context. The REACH Statutory Instruments that made these changes can be found on legislation.gov.uk. The key principles of the EU REACH Regulation were retained in UK REACH.

The UK REACH and the EU REACH regulations operate independently from each other. Operators must ensure they comply with both regulations, where necessary.

UK REACH regulates chemicals placed on the market in Great Britain (GB).

Under the terms of the Northern Ireland Protocol, EU REACH continues to apply in Northern Ireland.

Status

Boeing is continuously assessing the substances subject to authorization by the European Commission and the UK Parliament. Boeing is investing in research and development and collaborating with suppliers to minimize the impact of the authorization process on the materials and processes used in Boeing designs. When feasible, Boeing will identify and implement alternative materials and processes. However, for some substances, alternatives are not available. In these instances Boeing has supported upstream authorization through various consortia and industry groups. Boeing, through its subsidiary, Boeing Distribution Inc. (formerly Aviall Services), has also applied for and been granted authorization for several critical chromate substances and aerospace uses, operators may contact Boeing Distribution Inc. for coordination or assistance.

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Interim Action

Attached is a list of maintenance consumables listed in Boeing manuals that have been identified to have a substance subject to authorization. The list contains the substance, authorization sunset date (date when the SVHC cannot be placed on the market or used without authorization), the maintenance consumable and the alternative status. This list will be updated periodically when new information is available. Once a product availability is resolved and appropriate information is published in our maintenance manuals, the product will be removed from the list.

Final Action

As Boeing identifies alternative materials the alternative materials will be implemented as appropriate in our manuals. In cases where Boeing cannot identify an alternative, operators who use consumables containing Annex XIV listed substances are encouraged to contact their upstream supply chain (e.g., chemical manufacturers, formulators, importers) to ensure that formulations containing Annex XIV restricted substances will be authorized and available for their specific required uses. Boeing is participating in various consortia and industry groups that are developing technical dossiers that can be used by aerospace suppliers and customers to apply for authorization. Filing an application for Authorization is then the responsibility of the EU manufacturer, importer, or user of Annex XIV listed substances. Boeing, through its subsidiary Boeing Distribution Inc. (formerly Aviall Services) has applied for and been granted authorization for several critical chromate substances and aerospace uses, operators may contact Boeing Distribution Inc. for coordination or assistance.

Milestones

Not applicable.

Operator Action

If an operator becomes aware of an airplane maintenance consumable material that is affected by the European REACH regulations, we suggest they communicate with Boeing so that Boeing may investigate further.

Operators affected by the REACH regulation should be working to identify any products in the workplace that are affected by REACH regulations to be sure they have plans in place to address use or replacement of such products. We encourage operators to be proactive in communicating the impact to their local regulatory agencies responsible for REACH implementation, and where appropriate to seek authorization for continued use.

Reference Categories

Reference Type	Reference Number	Revision Number	Reference Date
Other	Regulation (EC) No 1907/2006		

Related Categories

- Airplane Maintenance Issues : Issues that occur during airplane maintenance or have an impact on airplane reliability
- Component Issues : Issues that occur during component maintenance or have an impact on component reliability

Attachments:

a) REACH Affected Consumables Dec2022

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